

AI accord leaves labs exposed to regulators

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White House AI accord leaves labs exposed to regulators

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US AI labs have committed to four AI safety control layers (monitoring, internal verification, external audit, oversight) in the White House Accord on Super Intelligence, but the controls are largely already in place, and none delay or stop a model release.

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The requirement that models not hack or access technical systems in unintended ways exposes labs to existing scrutiny, including a weeks-old Federal Trade Commission (FTC) investigation, but does not impose new liability, reporting or regulatory obligations, or federal oversight.

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The accord does not shield the labs from existing consumer protection or antitrust authorities, leaving them as exposed to enforcement as they were before the signing.

The accord does not deliver on the core of Anthropic CEO Dario Amodei's proposal: linking model releases to progress on alignment. Instead, it asks companies to monitor the capabilities and alignment of their models during training and deployment. The accord specifies four layers that each company should implement: internal monitoring on capabilities and alignment, an internal verification team, an external auditor, and a board committee. These will cost little, as most signatories already have some version of each in place. That said, the accord does give executives cover against investors who treat safety spending as a headwind, since renegeing on a presidential-backed commitment carries its own political cost.

The accord dodged the antitrust problem rather than solving it. The signatories, including Anthropic, Google, OpenAI, xAI, and Nvidia, agreed to "meet regularly to establish best practices and standards" for AI safety in their systems. But coordinated pacing of AI products—deliberately slowing model releases in step with competitors—as proposed by Amodei in his September essay on "pacing the frontier," would require an unpopular antitrust waiver (see: Mutual AI restraint requires antitrust waiver no one supports , 22 September 2026).

As recently as last week, President Donald Trump reiterated his opposition to pacing, while White House adviser David Sacks voiced his opposition to an antitrust waiver for AI labs. The administration's approach is difficult to square: the agreement offers labs political cover and commits them to oversight of their own systems and coordination around AI safety, even as regulatory action continues regardless.

The only outcome-based clause is likely a liability. The internal monitoring item also commits each company to “ensure that its models do not hack or access technical systems in unintended ways,” where other elements of the statement only commit to a process. Given that labs do not yet have a mechanism to broadly prevent loss-of-control incidents, this may prove a liability. Trump called the accord “morally binding” and the document carries no enforcement mechanism. But a public promise gives state enforcers and private plaintiffs a written benchmark, and this line of the accord does not have flexibility. The accord may also provide a benchmark for federal regulators once Republicans, who are largely in lockstep around AI legislation, lose power.

The commitment to meet regularly will outlast this administration but might invite scrutiny. The accord commits participating companies to “meet regularly to establish standards and best practices” around AI safety for their systems, and the AI labs have committed to a standing forum among competitors. FTC Chairman Andrew Ferguson’s attendance suggests political cover for that action, and the document opens the door to codification later, which would settle the question. But it does not insulate against scrutiny under a future administration (or, it turns out, this one).

A broader FTC probe signals that the government will use existing laws to regulate AI. A day after the accord was signed, the FTC widened an investigation into Anthropic, OpenAI, and potentially other AI companies, following incidents in which models compromised outside systems, including the Hugging Face platform and the Australian health service. The probe predates the accord and its scope has not been confirmed, but the conduct under examination sits close to the commitment to prevent unintended hacking.

The commission could treat a violation of the accord as evidence under the deceptive practices provision of the Federal Trade Commission Act, and Ferguson, who attended the signing, has said labs can be held liable for what their models do. Loss-of-control incidents are the current focus of the investigation, and the accord raises rather than lowers risk to companies by putting the commitment in writing. Whether by design or not, Ferguson’s probe makes the point that the accord does not insulate AI labs from regulatory scrutiny. In two years, a new administration’s FTC could certainly use the commitments, including around loss-of-control incidents, against labs.

The same holds on antitrust. Signing at the White House does not create an antitrust defense under the Sherman Act, and the standards forum referenced in the accord can be examined by this or a future FTC. The Justice Department has stepped back, with Attorney General Todd Blanche saying this month that his department will not try to regulate AI, but such pledges are not binding and can shift once enforcement priorities change.

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